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Case Number: 24STCV10572 Hearing Date: August 4, 2026 Dept: 224

Lee v. NXT IPA, Inc. et al.,

TENTATIVE RULING

Individual Defendants' Demurrer to the First Amended Complaint is SUSTAINED with 30 days leave to amend as to the tenth causes of action and OVERRULED as the remaining causes of action.

Defendants' Motion to Strike the First Amended Complaint is DENIED.

The Demurrer filed on behalf of the entity Defendants is stricken for lack of legal representation. An OSC Re Default re the entity defendants is set for November 30, 2026 at 8:30 a.m. A Case Management Conference is set for that date and time as well.

ANALYSIS

INTRODUCTION

Plaintiff Toni Lee ("Plaintiff") filed this employment action against Defendants NXT IPA, Inc. ("NXT"); Nanoom Medical Group, Inc. ("NMG"); Jonah Medical Group, Inc. ("JMG"); Sunny Yoo, erroneously sued as Sonny Yoo ("Yoo"); Jisan Lee ("Lee"); Dr. Edwin Choi ("Dr. Choi"); and DOES 4 through 20.

On August 12, 2025, Plaintiff filed the operative First Amended Complaint against NXT, NMG, JMG, Yoo, Lee, Dr. Choi, and DOES 4 through 20, asserting several causes of action for: (1) wage and hour violations; (2) individual and/or representative Private Attorney General Act ("PAGA"); (3) Unfair Competition – Business and Professions Code Section 17200, et seq.; (4) Wrongful Termination; (5) Failure to Indemnify/reimburse Necessary Expenditures – Labor Code Section 2802; (6) Assault; and (7) Battery.

On October 15, 2025, NXT, NMG, JMG, Yoo, Lee, Dr. Choi (collectively, "Defendants") filed the instant Demurrer and Motion to Strike the FAC. On May 8, 2026, the Court granted a motion to be relieved as counsel for Defendants and the Court set an OSC Re Striking if the Demurrers filed on behalf of the entity Defendants, for lack of legal representation.

On July 22, 2026, Plaintiff filed an Opposition. Any reply would have been due on July 28, 2026. To date, no reply has been filed. Then entity defendants remain unrepresented.

II. LEGAL STANDARD

Demurrer

“The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)

“A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether “the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (Id.) The Court does not “read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint ‘as a whole and its parts in their context.’ [Citation.]” (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court “assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (Harris, supra, 56 Cal.4th p. 240.) “The court does not, however, assume the truth of contentions, deductions, or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)

A demurrer for uncertainty means the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(1).)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also Stafford v. Shultz (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., §

III. MEET AND CONFER

Prior to filing a demurrer and motion to strike, the demurring/moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer and motion to strike. (Code Civ. Proc., § 430.41; Code Civ. Proc., § 435.5.)

Here, Defendants' counsel of record, Maria Markova, attests to the following meet and confer efforts: "On October 9, 2025, I participated in a telephonic meet and confer conference of counsel with attorney Amanda Thompson in an attempt to resolve the arguments raised in Defendants' demurrer and motion to strike informally, however, the parties were unable to reach an agreement." (Markova Decl., ¶4.) As such, the Court finds that Defendants' fulfilled their meet and confer obligations.

IV. REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of the following: (1) PAGA Notice Public Search-Case Detail – Ex. 1; (2) PAGA PRA Request and Response from Department of Industrial Relations – Ex. 2; (3) Plaintiff's Complaint – Ex. 3; and (4) Plaintiff's FAC – Ex. 4.

"[C]ourts must take judicial notice of the public and private official acts of the legislative, executive, and judicial departments of this state and of the United States government." (Arnold v. Universal Oil Land Co. (1941) 45 Cal.App.2d 522, 529.) However, "[w]hen judicial notice is taken of a document ... the truthfulness and proper interpretation of the document are disputable." (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 569.)

Likewise, "[a] court may judicially notice the '[r]ecords of ... any court of this state'. [Citation]." (Aixtron, Inc. v. Veeco Instruments Inc. (2020) 52 Cal.App.5th 360, 382, disapproved of by Vo v. Technology Credit Union (2025) 108 Cal.App.5th 632 on other grounds.) "We may take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in documents such as orders, statements of decision, and judgments—but cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact." (Id.)

Thus, Defendants' request for judicial notice is GRANTED except as to hearsay matters and facts in dispute per Evidence Code Section 452, subdivision (c), (d), and (h).

V. DISCUSSION

Defendants demur to all fourteen causes of action on the grounds that: (1) as to the wage and hour claims, the FAC fails to allege who is Plaintiff's employer and are not pled with specificity; (2) as to the PAGA claims, the FAC fails to compliance with the pre-filing notice requirements; (3) as to the wrongful termination claims, the FAC fails to allege any illegal activities; (4) the intentional tort claims are barred by the Worker's Compensation Act ("WCA") exclusivity remedies; and (5) the eleventh cause of action for failure to indemnify/reimburse necessary expenditures only asserts a conclusion no allegations. Plaintiff opposes.

Wage and Hour Claims (1st through 8th COAs)

"Wage and hour claims in California are governed by the Labor Code and by wage orders adopted by the Industrial Welfare Commission (IWC)." (Camp v. Home Depot U.S.A., Inc. (2022) 84 Cal.App.5th 638, 648.) Only an employer can be liable for

wage and hour claim violations. (See *Martinez v. Combs* (2010) 49 Cal.4th 35, 49.) Also, “statutory causes of action must be pleaded with particularity...” (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) As such, merely reciting the language of the statute is insufficient to state a cause of action. (*Hawkins v. TACA Internat. Airlines, S.A.* (2014) 223 Cal.App.4th 466, 478.)

The FAC alleges, inter alia, that Dr. Choi owned and operated NXT, NMG, and JMG at all relevant times, conducting joint business at 866 S. Westmoreland Ave., Ste. 101, Los Angeles, CA. (FAC, ¶¶4-9, 18-21, 25.) On or about September 1, 2022, Defendants hired Plaintiff as an independent physician associate. (Id., ¶23.) Plaintiff's duties included recruiting doctors to join Defendants' team, recruiting various specialists, assessing credentials, coordinating with a third party that handles contracts between doctors and Defendants, and handling patient claims and issues. (Id.) Dr. Choi and Yoo dictated Plaintiff's compensation and had plenary ability to supervise, manage, hire, and fire Plaintiff. (Id., ¶¶10-11.) On or about September 26, 2022, Plaintiff signed an employment contract with NMG and JMG for a base salary of \$48,000.00 in exchange for her labor. (Id., ¶26.) NMG also paid Plaintiff approximately \$250.00 for working an event. (Id.) Plaintiff was misclassified as an exempt employee. (Id., ¶27.)

Taking these allegations as true, Plaintiff sufficiently alleges that Defendants were her employer for purposes of liability under the wage and hour statutes. Specifically, Plaintiff alleges that Dr. Choi and Yoo had the authority to hire and fire her; Dr. Choi owned and operated NXT, NMG, and JMG during her employment; Defendant hired her on September 1, 2022; and at least NMG and JMG hired her on September 29, 2022. The FAC also alleges that Defendants are alter egos of each other by failing to maintain corporate formalities, sharing control of Plaintiff as an employee, and sharing a business address.

As to the pleading of specific facts in support of each wage and hour violation, the FAC does more than plead recitations of statutory language. In fact, the FAC alleges that Plaintiff worked more than the 20 to 25 hours represented by Defendants because Plaintiff was required to answer work-related phone calls and emails outside of her scheduled working hours as late as 9:00 p.m. (FAC, ¶¶29, 89.) Due to Plaintiff's employment misclassification, Defendants failed to pay Plaintiff a minimum wage for all hours of work performed; failed to pay overtime rate of pay; and rarely provided Plaintiff with a unpaid meal or rest break. (Id., ¶¶30, 32, 38-39, 41-46, 66, 72, 75, 78, 81, 84-85.) Plaintiff worked shifts greater than five (5) hours and ten (10) without two 30 minute meal breaks (Id., ¶¶79-80.) Defendants routinely failed to provide Plaintiff with timely wages or pay including accrued wages and other compensation due at her time of her pre-scheduled termination or within seventy-two (72) hours of her resignation. (Id., ¶¶93, 97.) Defendants conducted as alleged has been and continues to be unfair, unlawful, and harmful to employees and the general public. (Id., 99-100.)

Therefore, the demurrer to wage and hour claims is **OVERRULED**.

PAGA Claims (1st through 8th and 12th COAs)

“A civil action by an aggrieved employee pursuant to subdivision (a) or (f) of Section 2699 alleging a violation of any provision listed in Section 2699.5 shall commence only after the following requirements have been met: [¶](A) The aggrieved employee or representative shall give written notice by online filing with the Labor and Workforce Development Agency and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation. [¶](B) A notice filed with the Labor and Workforce Development Agency pursuant to subparagraph (A) and any employer response to that notice shall be accompanied by a filing fee of seventy-five dollars (\$75). The fees required by this subparagraph are subject to waiver in accordance with the requirements of Sections 68632 and 68633 of the Government Code. [¶](C) The fees paid pursuant to subparagraph (B) shall be paid into the Labor and Workforce Development Fund and used for the purposes specified in subdivision (n) of Section 2699.” (Lab. Code, § 2699.3, subd. (a)(1).) “The requirement of pre-suit administrative exhaustion of PAGA claims is not particularly stringent, but it is not an empty formality either.” (*LaCour v. Marshalls of California, LLC* (2023) 94 Cal.App.5th 1172, 1193; see also *Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 835 [“Proper notice under section 2699.3 is a ‘condition’ of a PAGA lawsuit.”].)

Here, Plaintiff submitted an initial PAGA Notice to the Labor and Workforce Development Agency (“LWDA”) on December 4, 2023. (Def. RJN, Ex. 1.) On May 2, 2024, Plaintiff submitted and Amended PAGA Notice to LWDA. (Id.) Although the moving papers contend that the PAGA Notice did not name NMG and JMG as employers (Dem. at 15:27-28), both PAGA Notices

listed them as Plaintiff's employers. (Def. RJN, Ex. 2 at pp. 11, 17.) Furthermore, the PAGA Notices identify each of the causes of action and labor code violations Plaintiff asserted in the FAC. The FAC itself provides sufficient facts as to the scope of the claims asserted against them. (See FAC, ¶¶52-65.)

Therefore, the demurrer to the PAGA claims is **OVERRULED**.

Wrongful Termination Claims (9th through 10th COAs)

"To establish a termination of employment in violation of public policy, each of the following must be proved: (1) ... an employer-employee relationship ... [¶] (2) ... the termination of plaintiff's employment was a violation of public policy. The public polic[y] of the State of California [is] ... employers shall not terminate employees in retaliation for disclosing to the employer's management a practice of the employer to violate the False Statements Act.... [¶] (3) the termination of employment was a legal cause of [plaintiff's damage]; and (4) The nature and the extent of [plaintiff's damage]." (Holmes v. General Dynamics Corp. (1993) 17 Cal.App.4th 1418, 1427.) Likewise, to establish a prima facie case of whistleblower retaliation under Labor Code Section 1102.5, the plaintiff must show that he engaged in a protected activity, his employer subjected him to adverse employment action, and there is a causal link between the protected activity and the employer's action. (See Manavian v. Department of Justice (2018) 28 Cal.App.5th 1127, 1141.)

As discussed above, the FAC alleges that Defendants were Plaintiff's employers and violated several wage and hour provisions as it relates to Plaintiff's employment. (FAC, ¶¶4-9, 15, 18-21, 23-26, 28-32,) The FAC also alleges that Plaintiff occasionally complained to Yoo that she was not being paid enough and requested that she either be paid more or required to work less but the requests were ignored. (Id., ¶33.) On or about November 9, 2023, Plaintiff constructively terminated due to intolerable working conditions including working more than the 20 to 25 hours represented by Defendants; Defendants failing to pay Plaintiff a minimum wage for all hours of work performed; Defendants failing to pay overtime rate of pay; and Plaintiff rarely being provided with a unpaid meal or rest break; and Defendants not taking appropriate action when another employee physically assaulted Plaintiff. (Id., ¶¶29-30, 32, 34-36, 38-39, 41-46, 66, 72, 75, 78-81, 84-85, 89.) Defendants also cut Plaintiff's hours for exercising her rights under Labor Code Section 1102.5. (Id., ¶115.) However, the FAC fails to sufficiently allege a causal link between her complaining about not being paid enough, working more hours than represented, reporting the assault incident, and her termination. The FAC makes no mention of the dates these complaints were made nor when the assault incident occurred in relation to the November 9, 2023 termination.

Therefore, the demurrer to the ninth cause of action is **OVERRULED** and is **SUSTAINED** with leave to amend as to the tenth cause of action.

Intentional Tort Claims (13th through 14th COAs)

"The elements of a cause of action for assault are: (1) the defendant acted with intent to cause harmful or offensive contact, or threatened to touch the plaintiff in a harmful or offensive manner; (2) the plaintiff reasonably believed he was about to be touched in a harmful or offensive manner or it reasonably appeared to the plaintiff that the defendant was about to carry out the threat; (3) the plaintiff did not consent to the defendant's conduct; (4) the plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing the plaintiff's harm." (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 890.)

Likewise, "[t]he elements of a cause of action for battery are: (1) the defendant touched the plaintiff, or caused the plaintiff to be touched, with the intent to harm or offend the plaintiff; (2) the plaintiff did not consent to the touching; (3) the plaintiff was harmed or offended by the defendant's conduct; and (4) a reasonable person in the plaintiff's position would have been offended by the touching." (Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 890.)

Generally, "[u]nder workers' compensation an employer is liable for injuries to its employee arising out of and in the course of employment. (Lab. Code, § 3600.) "[A] compensable injury is one which causes disability or need for medical treatments." (Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 753.) Where the conditions of workers' compensation exist, the right to recover such compensation is the employee's exclusive remedy against the employer for such injuries."

(Spratley v. Winchell Donut House, Inc. (1987) Cal. App. 3d 1408, 1411.) However, the WCA exclusivity will not bar a civil action where the “employee’s injury or death is proximately caused by a willful physical assault by the employer.” (Lab. Code, § 3602, subd. (b)(1) [emphasis added].) Similarly, the WCA exclusivity will not bar a civil action “[w]hen the injury or death is proximately caused by the willful and unprovoked physical act of aggression of the other employee.” (Lab. Code, § 3601, subd. (a)(1) [emphasis added].)

“The California Supreme Court has clarified the meaning of this exception, holding that commission of ‘unprovoked physical acts of aggression’ includes an intent to injure requirement.” (Wilson-Combs v. California Dept. of Consumer Affairs (E.D. Cal. 2008) 555 F.Supp.2d 1110, 1119.) “The court distinguished ‘unprovoked physical acts of aggression’ from ‘horseplay,’ which is ‘characterized by a lack of animosity’ and consistently fall within the parameter of the workers’ compensation exclusivity rule.” (Id.) Essentially, “the ‘intent to injure’ requirement is satisfied where a plaintiff’s claims depict ‘unprovoked conduct intended to convey an actual, present, and apparent threat of bodily injury’ because this class of intentional co-employee transgressions ‘against the employee’s person by means of violence and coercion ... is always outside the compensation bargain.’” (Id. at 1120.)

The FAC alleges that Defendants hired another employee, Lee. (FAC, ¶34.) On or about July 14, 2023, there was a miscommunication between Lee and Plaintiff, which resulted in Lee blocking Plaintiff from exiting a room and pushing Plaintiff. (Id.) This is the exact type of conduct the California Supreme Court concluded were not barred under WCA. Specifically, Plaintiff alleges an unprovoked push at the hands of her coworker done with the intent to injure her during an alleged miscommunication.

Therefore, the demurrer to the thirteenth and fourteenth causes of action is OVERRULED.

Eleventh Cause of Action for Failure to Indemnify/Reimburse Expenditures

“An employer shall indemnify his or her employee for all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties, or of his or her obedience to the directions of the employer, even though unlawful, unless the employee, at the time of obeying the directions, believed them to be unlawful.” (Lab. Code, § 2802, subd. (a).) “The elements of a claim under Section 2802 are: (1) the employee made expenditures or incurred losses; (2) the expenditures or losses were incurred in direct consequence of the employee’s discharge of his or her duties, or obedience to the directions of the employer; and (3) the expenditures or losses were reasonable and necessary.” (Arroyo v. International Paper Company (N.D. Cal. 2020) 611 F.Supp.3d 824, 844–845.)

The FAC alleges, inter alia, that Defendants frequently required Plaintiff to drive to various locations for meetings that she was required to attend in the discharge of her job duties. (FAC, ¶¶31, 127.) Defendants failed to reimburse Plaintiff for these travel expenses as necessary business expenditures, which she paid for out of pocket. (Id.)

Taking these allegations as true, the FAC sufficiently alleges that Plaintiff incurred travel expenses as a direct consequence of Plaintiff having to drive to various location for meeting required by Defendants in the discharge of her job duties, which she paid for with her own money.

Therefore, the demurrer to the eleventh cause of action is OVERRULED.

Motion to Strike

Defendants also move to strike references to punitive damages in the FAC. Thus, consistent with the demurrer ruling, the Court finds that FAC alleges sufficient facts to support a claim for punitive damages.

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) The California Civil Code Section 3294, subdivision (a) authorizes punitive damages upon a showing of malice, fraud, or oppression.

Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff", or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal. App. 4th 306, 331.) Fraud under California Civil Code Section 3294, subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) The California Civil Code Section 3294, subdivision (2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (2).)

Punitive damages thus require more than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) A "conclusory characterization of [a] defendant's conduct as intentional, wilful and fraudulent [is] [a] patently insufficient statement of oppression, fraud, or malice". (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 865.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) "When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice." (G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

As discussed above, the FAC alleges that Defendants hired another employee, Lee. (FAC, ¶134.) On or about July 14, 2023, there was a miscommunication between Lee and Plaintiff, which resulted in Lee unprovoked blocking Plaintiff from exiting a room and pushing Plaintiff. (Id.) Plaintiff informed Defendants about this incident but no appropriate actions were taken. (Id., ¶135.)

VI. CONCLUSION

Individual Defendants' Demurrer to the First Amended Complaint is SUSTAINED with 30 days leave to amend as to the tenth causes of action and OVERRULED as the remaining causes of action.

Defendants' Motion to Strike the First Amended Complaint is DENIED.

The Demurrer filed on behalf of the entity Defendants is stricken for lack of legal representation. An OSC Re Default re the entity defendants is set for November 30, 2026 at 8:30 a.m. A Case Management Conference is set for that date and time as well.

Defendants to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order.